

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Justin Huang	Team: Squad #10	CCRB Case #: 202305305	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 06/09/2023 12:00 AM, Friday, 06/09/2023 9:30 AM, Friday, 06/09/2023 9:50 AM	Location of Incident: Euclid Avenue A train station Transit District 33 station house	18 Mo. SOL 12/9/2024	Precinct: 75		
Date/Time CV Reported Mon, 06/12/2023 4:22 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 06/12/2023 4:22 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. PO Hallan Martinez	14516	974315	077 PCT
3. PO Michael Dease	27867	945649	075 PCT
4. PO Christina Oconnor	05510	939832	075 PCT
5. PO Isaiah Youngblood	01176	968895	081 PCT
6. PO Mario Valencia	14562	937668	TD 33
7. PO Christopher Chase	27080	964983	TD 33
8. SGT Anthony Alvarez	01085	942944	TD 33

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Raul Gonzalez	10682	956690	TD 33
2. PO Jasmine Jimenez	25474	969135	SSD YRT
3. PO Nedson Pluviose	07122	948500	TD 33
4. PO Kevin Mei	03996	969218	TD 33
5. SGT Patryk Kaczmarczyk	00185	954012	TD 33

Officer(s)	Allegation	Investigator Recommendation
A . PO Hallan Martinez	Abuse: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Hallan Martinez improperly used his body-worn camera.	A . Substantiated
B . PO Michael Dease	Abuse: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Michael Dease improperly used his body-worn camera.	B . Unable to Determine
C . PO Christina Oconnor	Abuse: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Christina Oconnor improperly used her body-worn camera.	C . Unable to Determine
D . PO Hallan Martinez	Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Hallan Martinez used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO Michael Dease	Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Michael Dease used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO Hallan Martinez	Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Hallan Martinez used physical force against § 87(2)(b)	F . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
G . PO Christina Oconnor	Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Christina Oconnor used physical force against § 87(2)(b)	G . Within NYPD Guidelines
H . An officer	Force: Inside the Euclid Avenue A train station at 9:30AM, an officer used physical force against § 87(2)(b)	H . Officer(s) Unidentified
I . PO Christina Oconnor	Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Christina Oconnor used physical force against § 87(2)(b)	I . Within NYPD Guidelines
J . PO Michael Dease	Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Michael Dease used physical force against § 87(2)(b)	J . Within NYPD Guidelines
K . PO Isaiah Youngblood	Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Isaiah Youngblood used physical force against § 87(2)(b)	K . Miscellaneous - Subject Terminated
L . PO Michael Dease	Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Michael Dease restricted § 87(2)(b) breathing.	L . Unfounded
M . PO Mario Valencia	Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Mario Valencia used physical force against § 87(2)(b)	M . Unfounded
N . PO Mario Valencia	Abuse: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Mario Valencia refused to provide his name to § 87(2)(b)	N . Unfounded
O . PO Mario Valencia	Abuse: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Mario Valencia refused to provide his shield number to § 87(2)(b)	O . Unfounded
P . An officer	Force: Outside the Euclid Avenue A train station at 9:30AM, an officer used physical force against § 87(2)(b)	P . Unfounded
Q . PO Mario Valencia	Force: Outside the Euclid Avenue A train station at 9:30AM, Police Officer Mario Valencia used physical force against § 87(2)(b)	Q . Substantiated
R . PO Christopher Chase	Force: At the Transit District 33 stationhouse at 9:50AM, Police Officer Christopher Chase used physical force against § 87(2)(b)	R . Within NYPD Guidelines
S . PO Mario Valencia	Force: At the Transit District 33 stationhouse at 9:50AM, Police Officer Mario Valencia used physical force against § 87(2)(b)	S . Within NYPD Guidelines
T . PO Mario Valencia	Force: At the Transit District 33 stationhouse at 9:50AM, Police Officer Mario Valencia used physical force against § 87(2)(b)	T . Substantiated
U . PO Christopher Chase	Force: At the Transit District 33 stationhouse at 9:50AM, Police Officer Christopher Chase used physical force against § 87(2)(b)	U . Unfounded
V . An officer	Abuse: At the Transit District 33 stationhouse at an unknown time, an officer did not obtain medical treatment for § 87(2)(b)	V . Officer(s) Unidentified
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On June 12, 2023, § 87(2)(b) filed this complaint with the CCRB in-person.

On June 9, 2023, at approximately 9:30AM, § 87(2)(b) entered the Euclid Avenue A-train subway station in Brooklyn. There, Police Officer Hallan Martinez, of the 77th Precinct, and Police Officers Christina OConnor and Michael Dease, of the 75th Precinct, improperly used their body-worn cameras (BWCs) (**Allegation A: Abuse of Authority – Improper Use of Body-Worn Camera, Substantiated**) (**Allegations B and C: Abuse of Authority – Improper Use of Body-Worn Camera, Unable to Determine**). PO Martinez pushed § 87(2)(b) several times while he walked to the platform (**Allegation D: Force – Physical Force, Within NYPD Guidelines**). On the platform, PO Martinez, PO Dease and PO OConnor all used physical force against § 87(2)(b) (**Allegations E, F, and G: Force – Physical Force, Within NYPD Guidelines**). An unidentified officer punched § 87(2)(b) (**Allegation H: Force – Physical Force, Officer Unidentified**). Police Officer Isaiah Youngblood, of the 81st Precinct, arrived on the platform, and PO Youngblood, PO Dease, and PO OConnor all used physical force against § 87(2)(b) (**Allegations I and J: Force – Physical Force, Within NYPD Guidelines; Allegation K: Force – Physical Force, Miscellaneous – Subject Terminated**). PO Dease allegedly restricted § 87(2)(b) breathing (**Allegation L: Force – Restricted Breathing, Unfounded**). Sergeant Anthony Alvarez and Police Officers Mario Valencia, Christopher Chase, Jasmine Jiminez, Nedson Pluviose, and Kevin Mei, all of Transit District 33, arrived and escorted § 87(2)(b) out of the station. PO Valencia allegedly punched § 87(2)(b) (**Allegation M: Force – Physical Force, Unfounded**). § 87(2)(b) asked PO Valencia for his name and badge number, but PO Valencia allegedly did not provide the information (**Allegation N: Abuse of Authority – Refusal to provide name, Unfounded; Allegation O: Abuse of Authority – Refusal to provide Shield Number, Unfounded**). Outside the station, an unidentified officer allegedly punched § 87(2)(b) (**Allegation P: Force – Physical Force, Unfounded**). PO Valencia pulled § 87(2)(b) arms when securing him inside a police vehicle (**Allegation Q: Force – Physical Force, Substantiated**).

At approximately 9:50AM, PO Valencia and PO Chase transported § 87(2)(b) to the Transit District 33 Stationhouse, where PO Valencia and PO Chase pulled and dragged § 87(2)(b) inside (**Allegations R and S: Force – Physical Force, Within NYPD Guidelines**). Once inside the stationhouse, PO Chase and PO Valencia pushed § 87(2)(b) (**Allegation T: Force – Physical Force, Substantiated; Allegation U: Force – Physical Force, Unfounded**). An unidentified officer refused to obtain medical attention for § 87(2)(b) (**Allegation V: Abuse of Authority – Refusal to obtain Medical Treatment, Officer Unidentified**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was arrested for theft of service, resisting arrest, and obstruction of governmental administration (**BR 03**).

The CCRB received BWC footage from the NYPD and MTA security camera footage that captured portions of the incident (**BR 01 – 02**). Relevant footage will be discussed below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Hallan Martinez improperly used his body-worn camera.

Allegation (B) Abuse of Authority: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Michael Dease improperly used his body-worn camera.

Allegation (C) Abuse of Authority: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Christina OConnor improperly used her body-worn camera.

Allegation (D) Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Hallan Martinez used physical force against § 87(2)(b)

Allegation (E) Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer

Michael Dease used physical force against § 87(2)(b)

Allegation (F) Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Hallan Martinez used physical force against § 87(2)(b)

Allegation (G) Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Christina OConnor used physical force against § 87(2)(b)

Allegation (H) Force: Inside the Euclid Avenue A train station at 9:30AM, an officer used physical force against § 87(2)(b)

§ 87(2)(b) (BR 04) stated that he helped an elderly woman through the emergency door in the subway station and, without paying his fare, entered with her. § 87(2)(b) walked past the turnstile when PO Martinez grabbed § 87(2)(b) left arm. § 87(2)(b) ripped his arm away and continued walking. PO Martinez followed and asked to see ID. § 87(2)(b) replied that he did not have any ID and continued walking. When § 87(2)(b) got to the top of the stairs, PO Martinez grabbed his chest, arms, and back and tried to push him against a corner near the elevator. PO Martinez repeatedly asked § 87(2)(b) for ID, and § 87(2)(b) replied that he did not have ID. § 87(2)(b) tried to avoid PO Martinez by pushing him away and walking toward another staircase, but PO Martinez kept his grip on him and pushed him against another corner before trying to push him back to the turnstiles. § 87(2)(b) escaped PO Martinez's grip and walked down the stairs to the train platform while PO Martinez followed him and called for backup on his radio.

While waiting for the train on the platform, § 87(2)(b) saw five to seven officers walking toward him. An officer said, "get him," and all the officers jumped on top of him, bringing him to the ground. While handcuffing him, two officers held his arms, one officer placed a knee on his back and applied pressure, and one officer held his legs. The pressure on § 87(2)(b) back resulted in pain over his entire body, which was concentrated on his back, chest, and neck. § 87(2)(b) saw PO OConnor holding his legs while PO Dease was to his right, possibly holding onto his right arm. § 87(2)(b) felt an officer punch him in the right side of his stomach and heard him say that § 87(2)(b) was resisting arrest.

MTA security camera footage capturing the emergency door (BR 05) shows that at 35:15, § 87(2)(b) wearing black jeans and a light blue sweatshirt, walks in through the emergency exit door without paying. PO Martinez holds out his left arm and tries to grab § 87(2)(b) left arm, but § 87(2)(b) continues walking. PO Martinez walks through the emergency exit door following § 87(2)(b) and both walk out of frame.

MTA security camera footage capturing the train platform (BR 06) shows that at 37:00, § 87(2)(b) walks past the elevator on the subway platform. PO Martinez walks next to him while PO OConnor and PO Dease follow. PO Martinez tries to grab § 87(2)(b) arms, but § 87(2)(b) pulls away from PO Martinez. PO Dease, PO O'Connor, and PO Martinez grab § 87(2)(b) arms while § 87(2)(b) continues to pull away. § 87(2)(b) shoves PO OConnor, who falls to the ground a few feet away. At 37:15, PO OConnor gets back up and all three officers continue to grab § 87(2)(b). The officers take § 87(2)(b) down to the ground out of frame (only legs/feet are visible). At 38:02, § 87(2)(b) is face-down on the ground while PO Martinez, PO Dease, and PO OConnor are next to his upper torso and arms. All three officers handcuff § 87(2)(b) stand up, and lift § 87(2)(b) to a sitting position. At 39: 27, § 87(2)(b) uses his legs to kick and push his body back against PO OConnor. Officers continue to hold onto his shoulders and arms while § 87(2)(b) remains sitting on the ground.

BWC footage from PO Dease, PO OConnor and PO Martinez (BR 07 – 09) does not capture the beginning of the incident. Both PO Dease and PO OConnor's BWCs begin after the incident is over, when they escort § 87(2)(b) out of the station. PO Martinez's video begins when, at 01:00, § 87(2)(b) is sitting on the ground in handcuffs.

PO Martinez (BR 10) stated that he observed § 87(2)(b) walk through the emergency exit without paying the fare, which constituted theft of service. PO Martinez followed § 87(2)(b) into the station and told him to stop three or four times. § 87(2)(b) did not listen and kept walking while cursing at PO Martinez. PO Martinez did not activate his BWC because he was only planning

to warn and admonish § 87(2)(b). At the top of the stairs, PO Martinez stepped in front of § 87(2)(b) who walked into PO Martinez and tried to walk around him. PO Martinez pushed § 87(2)(b) away from the stairs by his upper chest and shoulders with both of his hands. PO Martinez pushed § 87(2)(b) back several times as he had continued to try and walk past him. § 87(2)(b) turned around and walked to another staircase, while PO Martinez followed him. PO Martinez asked § 87(2)(b) several times for his ID, but § 87(2)(b) did not provide it to him. PO Martinez, along with PO Dease and PO OConnor, both of whom walked toward PO Martinez from another entrance to the station, followed § 87(2)(b) down the stairs and to the platform.

Once downstairs, PO Martinez told § 87(2)(b) to stop, but § 87(2)(b) continued to walk away. PO Martinez grabbed § 87(2)(b) who responded by trying to push the officers back, slapping away the officers' hands, and kicking. § 87(2)(b) pushed PO OConnor away from him with one hand and caused her to fall on the yellow strip close to the tracks. As a result, PO Martinez decided to arrest § 87(2)(b) for assaulting a police officer. PO Martinez and PO Dease performed a controlled takedown and got § 87(2)(b) to the ground to place him into handcuffs. PO Martinez cited the small area of the platform and proximity to other civilians as reasons for performing the takedown immediately. While lying down on the ground, § 87(2)(b) continued to show resistance by moving his body left and right, kicking, and tensing his body and arms to avoid being handcuffed. § 87(2)(b) physical strength made it difficult to handcuff him and required all three officers to do so. PO Martinez denied placing his knee on § 87(2)(b) back and did not know if either PO Dease or PO OConnor did so. PO Martinez also denied punching § 87(2)(b) and did not see any other officer do so. After handcuffing § 87(2)(b) the officers sat him upright. PO Martinez was unable to activate his BWC before the takedown because the situation escalated quickly and he was focused on restraining § 87(2)(b). Once he was successfully handcuffed, PO Martinez activated his BWC.

PO Dease (**BR 11**) stated that he did not notice the initial interaction between § 87(2)(b) and PO Martinez and that PO OConnor told him that she observed PO Martinez following § 87(2)(b) down the stairs at a hurried pace. PO OConnor requested that they go investigate, and both officers followed PO Martinez as he went downstairs and made a U-turn to walk out of view. PO Dease did not activate his BWC because he did not know of any crime taking place. PO Dease and PO OConnor went downstairs and saw PO Martinez trying to grab § 87(2)(b) who was trying to push PO Martinez and pull away from him. PO Dease did not know why PO Martinez was trying to grab § 87(2)(b) but went to assist PO Martinez. PO Dease did not activate his BWC at this point because he was focused on PO Martinez's safety and apprehending § 87(2)(b). PO Dease grabbed § 87(2)(b) left side while PO OConnor grabbed the right side. § 87(2)(b) responded by flailing his arms, throwing his bodyweight around, pushing against the officers, and pulling away, which knocked off PO Dease's BWC. PO Dease saw § 87(2)(b) push PO OConnor back several feet, causing her to fall to the ground. PO Dease was also getting close to the platform edge while struggling with § 87(2)(b) and decided that a takedown was necessary. PO Dease and PO Martinez lowered § 87(2)(b) to the ground. § 87(2)(b) flailed his body, kicked his legs, and tried to keep his hands in front his body. All three officers told § 87(2)(b) to put his hands behind his back, to get in the handcuffs and they would get him up, to stop resisting, and to provide his hands, but § 87(2)(b) did not comply. The officers were eventually able to gain control of his hands and handcuff him. PO Dease denied placing his knee on § 87(2)(b) back and did not see any other officer do so. PO Dease also denied punching § 87(2)(b) and did not see any other officer do so. Before officers could lift him to a sitting position, the handcuff on § 87(2)(b) right wrist came loose. § 87(2)(b) attempted to get his hand in front of him and not put it behind his back. PO Dease and PO Martinez were quickly able to re-secure the right handcuff and brought § 87(2)(b) upright.

PO OConnor (**BR 12**) stated that she and PO Dease observed PO Martinez walking downstairs to the platform without his partner, and they both decided to follow him to make sure he was okay. PO OConnor did not activate her BWC because she did not think there was anything

going on. PO OConnor and PO Dease walked down the same staircase as PO Martinez, who had already reached the platform and was out of sight. PO OConnor and PO Dease made the same turn and saw PO Martinez struggling with § 87(2)(b) and trying to restrain him, but she did not remember what specific actions PO Martinez took to try and restrain him. PO OConnor also heard PO Martinez tell § 87(2)(b) to stop multiple times, but § 87(2)(b) refused to listen and was flailing his arms the whole time. PO Dease and PO OConnor went to help PO Martinez restrain § 87(2)(b). PO OConnor was focused on assisting PO Martinez and did not find it convenient to activate her BWC at the time. PO OConnor grabbed § 87(2)(b) arms but did not remember if she grabbed one or both arms. At this point, her intention was to place § 87(2)(b) in handcuffs. PO OConnor did not see where PO Dease was grabbing during this time. § 87(2)(b) resisted PO OConnor's attempts to place his arms behind his back and exerted enough strength to make it difficult for PO OConnor to handcuff him on her own. Besides flailing his arms, § 87(2)(b) also kicked with his legs and shoved PO OConnor back to the edge of the train platform. PO OConnor, PO Dease, and PO Martinez were eventually able to place handcuffs on § 87(2)(b). § 87(2)(b) continued to show resistance by kicking his legs, moving his body around and flailing his arms behind his back.

Patrol Guide procedure 221-01 (BR 13) states that when determining if force is reasonable, uniformed members of service should consider the following: "The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence." Members of service are prohibited from using a chokehold.

Patrol Guide procedure 212-123 (BR 14) states officers must activate their BWC prior to engaging in any police action and record any interaction that escalates to become adversarial or may hold evidentiary value. Officers must activate their BWC as soon as it is feasible and safe to do so after taking necessary action to preserve human health and safety, when an unanticipated or exigent occurrence takes place.

§ 87(2)(g)

It is recommended that **Allegation A** be **Substantiated**.

Both PO Dease and PO O'Connor's statements are consistent in that they only saw PO Martinez walking down the stairs and did not initially observe anything that would have required BWC activation. § 87(2)(g)

It is therefore recommended that **Allegations B and C** be closed as **Unable to Determine**.

It was undisputed that § 87(2)(b) did not pay his fare when entering the system. § 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations E, F, and G** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

§ 87(2)(g) BWC footage does not capture this portion of the incident, while MTA footage does not capture the entirety of the incident within frame and is inconclusive regarding whether an officer punched § 87(2)(b) § 87(2)(b).

§ 87(2)(g) It is recommended that **Allegation H** be closed as **Officer Unidentified**.

Allegation (I) Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Christina OConnor used physical force against § 87(2)(b)

Allegation (J) Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Michael Dease used physical force against § 87(2)(b)

Allegation (K) Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Isaiah Youngblood used physical force against § 87(2)(b)

Allegation (L) Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Michael Dease restricted § 87(2)(b) breathing.

§ 87(2)(b) (BR 04) stated that after being handcuffed, he felt pressure on his back and neck due to an officer placing a knee on his back as he was face-down on the ground. Because of the pressure and because he was wearing a facemask, § 87(2)(b) told the officers that he could not breathe. PO OConnor lifted him up to a sitting position.

MTA security camera footage on the subway platform (BR 06) shows that 41:09, PO Youngblood arrives on the platform, and PO Youngblood, PO Dease, PO OConnor and PO Martinez stand up and lift § 87(2)(b) from a sitting position to a standing position. At 41:20, § 87(2)(b) flails his arms in front of his body, showing they are not secured by the handcuffs, and attempts to flee from the officers. PO Youngblood, PO Dease, and PO OConnor restrain § 87(2)(b) by holding onto his arms and shoulders. At 41:34, PO Dease, PO OConnor, and PO Youngblood perform a second takedown in front of the elevator and surround § 87(2)(b) on the ground while PO Martinez stands behind the officers. At 42:30, officers roll § 87(2)(b) onto his back and raise him to a sitting position. § 87(2)(b) continues to move around while he is sitting on the ground in handcuffs.

BWC footage from PO Youngblood (BR 15) shows that at 01:12, PO Youngblood, PO Dease, and PO OConnor lift § 87(2)(b) to a standing position. § 87(2)(b) pulls his arms in front of his body, showing that he is not fully handcuffed, and tries to run away from the officers. PO Youngblood grabs onto § 87(2)(b) left arm. PO Youngblood says, “back down on the ground” and the officers lower § 87(2)(b) to the ground. PO Youngblood grabs the back of his sweater while PO Dease grabs his right arm. PO OConnor is down by his lower torso/legs. PO Youngblood flips § 87(2)(b) onto his stomach near a corner of an elevator and grabs his left arm. At 01:54, PO OConnor tries to secure handcuffs on § 87(2)(b) while PO Youngblood holds § 87(2)(b) left arm and PO Dease holds onto the left and right arms. § 87(2)(b) exclaims “my neck” several times. None of the officers are making contact with his neck and officers respond that no one is touching his neck. PO Dease places his elbow/forearm on top of § 87(2)(b) upper back for approximately four to five seconds before lifting it back up. At 02:24, PO Dease and PO OConnor flip § 87(2)(b) on his back and lift him up to a sitting position. PO Dease holds onto § 87(2)(b) handcuffs and right shoulder while PO OConnor holds onto both of § 87(2)(b). At 04:25, officers lift § 87(2)(b) to a standing position.

BWC footage from PO Martinez is consistent with that of PO Youngblood (BR 09). PO Dease and PO OConnor’s BWC videos do not start until the incident is over (BR 07, 08).

PO OConnor (BR 12) stated that both PO Dease and PO OConnor were initially able to

place him in handcuffs, but the handcuffs were not fastened tightly enough, and § 87(2)(b) slipped out of them. When § 87(2)(b) still displayed similar levels of resistance as before, PO O'Connor, PO Dease, and PO Martinez performed a second takedown to secure § 87(2)(b) in handcuffs. During the second takedown, § 87(2)(b) complained of his breathing being restricted. Due to § 87(2)(b) continuing to struggle against attempts to place him in handcuffs, he and the other officers came closer to the elevator and were unable to move due to the tight space. However, PO O'Connor did not place a hand on his neck, nor did she place a knee on his back during the incident. PO O'Connor also denied seeing other officers touch § 87(2)(b) neck or place a knee on his back. PO O'Connor also did not hear § 87(2)(b) complain of any pressure or injury to his neck during the incident. § 87(2)(b) was successfully handcuffed on the second takedown and the officers called for backup. The officers also lifted § 87(2)(b) to a sitting position.

PO Dease (BR 11) stated that he asked the other officers to get § 87(2)(b) up, remove him from the station, and that the officers meet the backup on the street. The officers placed an arm under each of § 87(2)(b) armpits to lift him. As soon as the officers got him to a standing position, § 87(2)(b) left handcuff opened. § 87(2)(b) began struggling again by pulling away, trying to keep his hands out in front of him and attempting to run, so they performed a controlled takedown near the elevator, ending up in a corner next to one of the posts supporting the elevator shaft. § 87(2)(b) was pushed up against the wall, but PO Dease did not believe § 87(2)(b) neck was making any contact with the concrete elevator area because it was a flat wall, and they were on the ground. § 87(2)(b) ended up in this position due to his pulling away from the officers in that general direction. PO Dease and the other officers tried to move him away from the corner, but § 87(2)(b) continued to resist. PO Dease grabbed § 87(2)(b) on his upper shoulder to gain better control of him while PO Youngblood grabbed § 87(2)(b) left side and PO O'Connor was gaining control of § 87(2)(b) legs. PO Dease denied placing a knee on § 87(2)(b) back and never grabbed § 87(2)(b) neck, put pressure on his neck, or had anything on his neck. PO Dease placed his forearm across the back of § 87(2)(b) blade and arm while trying to grab his right arm and assist in placing him in handcuffs. PO Dease never exerted any kind of pressure from his elbow to lower forearm toward the back of § 87(2)(b) neck. PO Dease did not observe any injuries on § 87(2)(b) after the last takedown, nor did he hear § 87(2)(b) say that his breathing was restricted.

PO Youngblood was dismissed from the NYPD on April 28, 2024, and is no longer an active member of service (BR 16).

Patrol Guide procedure 221-01 (BR 13) states that when determining if force is reasonable, uniformed members of service should consider the following: "The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence." Members of service are prohibited from using a chokehold.

§ 87(2)(g)

It is recommended that **Allegations I and J** be closed as **Within NYPD Guidelines**.

§ 87(2)(g) it is recommended that **Allegation K** be closed as **Miscellaneous – Subject Terminated**.

§ 87(2)(g)

footage shows him screaming multiple times at the officers. PO Youngblood's BWC footage also showed that PO Dease, the only officer positioned anywhere near § 87(2)(b) head and neck, did not ever place his arms/hands on § 87(2)(b) § 87(2)(g). Furthermore, the officers lifted § 87(2)(b) upright to a sitting position immediately after restraining him, § 87(2)(g). It is therefore recommended that **Allegation L** be **Unfounded**.

Allegation (M) Force: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Mario Valencia used physical force against § 87(2)(b)

Allegation (N) Inside the Euclid Avenue A train station at 9:30AM, Police Officer Mario Valencia refused to provide his name to § 87(2)(b)

Allegation (O) Abuse of Authority: Inside the Euclid Avenue A train station at 9:30AM, Police Officer Mario Valencia refused to provide his shield number to § 87(2)(b)

Allegation (P) Force: Outside the Euclid Avenue A train station at 9:30AM, an officer used physical force against § 87(2)(b)

Allegation (Q) Force: Outside the Euclid Avenue A train station at 9:30AM, Police Officer Mario Valencia used physical force against § 87(2)(b)

§ 87(2)(b) (BR 04) stated that PO Valencia and PO Youngblood lifted him up and carried him out of the station while other officers followed behind him. While he was being carried outside of the station, § 87(2)(b) asked for his handcuffs to be loosened. In response, PO Valencia punched § 87(2)(b) in the jaw once. § 87(2)(b) accused PO Valencia of punching him, but PO Valencia denied doing so. § 87(2)(b) asked for PO Valencia's name and badge number, but he did not provide the requested information. Upon reaching a marked patrol vehicle, an officer searched § 87(2)(b) pockets and removed several items from his pockets, including a cell phone, keys, a vape pen, and rolling papers. § 87(2)(b) felt either PO Valencia or PO Youngblood elbow him in the side during the search but did not know which officer it was. The two officers then placed § 87(2)(b) in the back of the patrol vehicle and drove toward the stationhouse.

MTA security camera footage capturing the emergency exit door (BR 05) shows that at 46:15, PO Chase opens the emergency exit door while PO Valencia and PO Youngblood hold onto § 87(2)(b) arms and escort him out of the station. Additional officers walk behind them and exit the station. No officer punches § 87(2)(b) or carries him outside.

BWC footage from PO Valencia (BR 17) shows that at 01:32, PO Valencia and PO Youngblood escort § 87(2)(b) up the stairs. § 87(2)(b) shows initial resistance by refusing to walk straight. At 01:55, PO Youngblood and PO Valencia walk with § 87(2)(b) out of the emergency exit door. § 87(2)(b) accuses the officers of punching him. PO Chase and PO Valencia walk with § 87(2)(b) to the corner outside, where PO Valencia parks a marked vehicle and stands by the rear driver side door while other officers place § 87(2)(b) in the backseat. At 03:55, PO Valencia goes into the vehicle and pushes § 87(2)(b) up via his back and tells the officers to sit him up, then pulls § 87(2)(b) back by his forearms before pushing him back to the seat. PO Valencia then tries handing a seatbelt to Sgt. Alvarez. At 04:15, § 87(2)(b) tells Sgt. Alvarez that there is nothing in his shoe. Sgt. Alvarez tells § 87(2)(b) to take off his shoe and § 87(2)(b) refuses. PO Valencia pulls § 87(2)(b) arms back while telling him to take off his shoes. At 04:30, PO Valencia stops pulling on § 87(2)(b) arms and helps place a seatbelt around him.

PO Jiminez's BWC footage (BR 18) shows that at 03:36, PO Jiminez walks around to the other side of the marked vehicle where PO Valencia is. Sgt. Alvarez tells § 87(2)(b) to take off his shoe and § 87(2)(b) refuses. PO Valencia pulls § 87(2)(b) back by his arms. At 03:54, PO Valencia pulls back § 87(2)(b) by his left wrist and by the chain of his handcuffs. PO Valencia then releases § 87(2)(b) arms.

PO Youngblood's BWC footage (BR 15) shows that at 05:37, Youngblood and PO Valencia escort § 87(2)(b) up the stairs and out of the station. At 06:05, § 87(2)(b) accuses an officer of punching him as he is being led out of the emergency exit. At 06:40, PO Youngblood and

PO Valencia escorted § 87(2)(b) outside and to a marked vehicle. Sgt. Alvarez and PO Youngblood searched § 87(2)(b) waistband, pockets, and right ankle. At 07:42, officers placed § 87(2)(b) against the side of the vehicle while telling him, "Stop resisting." Sgt. Alvarez removed § 87(2)(b) right shoe and tossed it into the back of the vehicle. PO Youngblood tried to take off § 87(2)(b) left shoe, but § 87(2)(b) moves his foot away and officers place him into the backseat.

BWC footage from PO Chase, PO Mei, Sgt. Alvarez and PO Pulviose (BR 19-22) is all consistent with BWC footage mentioned above. None of the BWCs capture an officer punching § 87(2)(b) while inside the station, nor do they capture an officer elbowing § 87(2)(b) side while he is outside the station. In addition, none of the videos ever capture § 87(2)(b) ask for PO Valencia's name or badge number.

PO Valencia (BR 23) stated that he and PO Chase escorted § 87(2)(b) out of the station and onto the street by their vehicle. § 87(2)(b) was verbally abusive and cursed at the officers, while also pushing his body around. PO Valencia denied punching § 87(2)(b) when escorting him out of the station, nor did he see any other officer do so. When they got outside, PO Valencia went to their vehicle, opened the rear passenger door, then went around to the other and opened the rear driver's side door in case the officers placing § 87(2)(b) inside needed assistance. PO Valencia noticed that the officers on the other side faced difficulties in placing § 87(2)(b) in the vehicle. While the officers were searching his lower legs and shoes, § 87(2)(b) kicked back with his feet, which raised his suspicions that he might have had something hidden in his shoes. PO Valencia used physical force to get § 87(2)(b) into the backseat by pulling § 87(2)(b) towards him by his forearms, which also allowed Sgt. Alvarez to take off and search § 87(2)(b). PO Valencia did not know if any contraband was recovered at the end of the search. PO Valencia pulled § 87(2)(b) arms back for a few seconds before letting go and placing a seatbelt on § 87(2)(b). During this exchange, PO Valencia did not see any officer punch or elbow § 87(2)(b). § 87(2)(b) did not ever ask PO Valencia for his name or badge number, nor did he ask these questions to any other officer on scene.

Patrol Guide procedure 221-01 (BR 13) states that when determining if force is reasonable, uniformed members of service should consider the following: "The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence." Members of service are prohibited from using a chokehold. In addition, officers are prohibited from using any level of force to punish, retaliate or coerce a subject to make statements, and are prohibited from using any level of force on handcuffed or otherwise restrained subjects unless necessary to prevent injury, escape, or to overcome active physical resistance or assault.

Comprehensive BWC video footage and MTA footage shows that no officer punched § 87(2)(b) while he was being escorted out of the station. § 87(2)(g)

§ 87(2)(g)
is recommended that **Allegations M, N, and O** be closed as **Unfounded**.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
It is therefore recommended that **Allegation P** be **Substantiated**.

Allegation (R) Force: At the Transit District 33 stationhouse at 9:50AM, Police Officer

Christopher Chase used physical force against § 87(2)(b)

Allegation (S) Force: At the Transit District 33 stationhouse at 9:50AM, Police Officer Mario Valencia used physical force against § 87(2)(b)

Allegation (T) Force: At the Transit District 33 stationhouse at 9:50AM, Police Officer Mario Valencia used physical force against § 87(2)(b)

Allegation (U) Force: At the Transit District 33 stationhouse at 9:50AM, Police Officer Christopher Chase used physical force against § 87(2)(b)

§ 87(2)(b) (BR 04) stated that upon arrival at the stationhouse, he refused to walk until he got his shoes back. PO Valencia and PO Youngblood dragged § 87(2)(b) from the car and into the stationhouse. They stopped at the front desk and completed paperwork. While at the front desk, PO Youngblood and PO Valencia lifted § 87(2)(b) wrists up, resulting in § 87(2)(b) having to bend over with his handcuffed wrists in the air due to the pain he felt.

BWC footage from PO Valencia (BR 17) shows that, at 10:16, PO Valencia exits the vehicle and walks over to the other side. § 87(2)(b) refuses to exit without his shoes. PO Chase and PO Valencia pull § 87(2)(b) out of the car by his arms and escort him into the stationhouse. At 11:10, PO Valencia pushes § 87(2)(b) and holds him in front of the front desk. § 87(2)(b) moves back and bumps into PO Valencia. PO Valencia pushes § 87(2)(b) against the desk and pushes § 87(2)(b) arms up behind his back while § 87(2)(b) yells out. PO Valencia asks if he is going to listen. At 11:26, § 87(2)(b) arms are lowered back down.

BWC footage from Sergeant Cely Decolongon of Transit District 33 (BR 24) shows that at 00:53, PO Chase and PO Valencia escort § 87(2)(b) into the stationhouse. PO Valencia pushes § 87(2)(b) against the front desk. § 87(2)(b) pushes his back against PO Valencia. In response, PO Valencia pushes § 87(2)(b) against the desk and raises § 87(2)(b) arms up behind his back until it is perpendicular with his body. PO Chase holds onto § 87(2)(b) left arm. PO Valencia repeatedly asks § 87(2)(b) if he is going to listen. Another officer lowers § 87(2)(b) arms back down while telling § 87(2)(b) to relax.

PO Valencia (BR 23) stated that upon arrival at the stationhouse, he and PO Chase asked § 87(2)(b) to exit the backseat, but § 87(2)(b) refused unless his shoes were back on his feet. PO Valencia explained that § 87(2)(b) would not be let out of the handcuffs, and he did not want to go near § 87(2)(b) legs in case he started kicking again. As a result, both officers pulled § 87(2)(b) out of the vehicle by his arms and escorted him inside the station. PO Valencia denied dragging § 87(2)(b) there and said that they had to push him several times for him to walk to the station. The officers opened the door to the stationhouse and stopped at the front desk. § 87(2)(b) tried headbutting PO Valencia by moving backwards with his entire body and moving his head back, but his head did not make contact with PO Valencia. To gain control of § 87(2)(b) PO Valencia grabbed his arms and lifted them up behind his back. PO Valencia explained that this maneuver was taught during training, and that the goal was to ensure § 87(2)(b) compliance. However, PO Valencia was unable to specify in what training this maneuver was taught. As soon as § 87(2)(b) ceased resistance, his arms were lowered back down.

PO Chase's statement (BR 25) was generally consistent with that of PO Valencia. At the front desk, § 87(2)(b) refused to stand still and face the front desk. PO Valencia restrained him by holding his arm in a firm grip and raising his arm upwards. PO Chase held onto § 87(2)(b) other arm but denied pushing or pulling on § 87(2)(b) arm, instead only wanting to keep § 87(2)(b) from moving. PO Valencia held § 87(2)(b) arms in the raised position for approximately four seconds before lowering his arms. PO Chase stated that this maneuver was part of training to gain compliance but could not recall the specific training.

Patrol Guide procedure 221-01 (BR 13) states that when determining if force is reasonable, uniformed members of service should consider the following: "The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight,

Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence." Members of service are prohibited from using a chokehold. In addition, officers are prohibited from using any level of force to punish, retaliate or coerce a subject to make statements, and are prohibited from using any level of force on handcuffed or otherwise restrained subjects unless necessary to prevent injury, escape, or to overcome active physical resistance or assault.

BWC footage from PO Chase and PO Valencia show § 87(2)(b) refusing to exit the vehicle. § 87(2)(g)

Footage also does not ever show either officer dragging § 87(2)(b) into the stationhouse and § 87(2)(b) largely walked on his own. § 87(2)(g)

It is recommended that **Allegations R and S** be closed as **Within NYPD Guidelines**.

§ 87(2)(g) However, § 87(2)(b) was already in handcuffs and under control by the time he was escorted to the front desk, where he was outnumbered and outsize by the officers in the stationhouse. In addition, BWC footage does not capture § 87(2)(b) "head-butting" PO Valencia in the manner he described. § 87(2)(g)

It is therefore recommended that **Allegation T** be **Substantiated**.

§ 87(2)(g) It is therefore recommended that **Allegation U** be **Unfounded**.

Allegation (V) Abuse of Authority: At the Transit District 33 stationhouse at an unknown time, an officer did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) (BR 04) stated that while he was standing at the front desk, he asked for medical attention but was instead placed in a holding cell. He was held at the stationhouse from 10:00AM to 10:00PM. While in the holding cell, § 87(2)(b) asked to call an attorney and asked for medical attention from an officer. However, § 87(2)(b) was not given medical attention while at the stationhouse and was finally given a phone call approximately five to seven hours after being lodged in the holding cell. § 87(2)(b) called his mother, § 87(2)(b) told her what happened, and asked her to find an attorney. At approximately 10:00PM, § 87(2)(b) was transported to Central Bookings from Transit District 33. § 87(2)(b) described the officer he spoke with as a white male wearing an NYPD uniform but was missing his badge.

The CCRB received the medical treatment of prisoner report from the NYPD (BR 26). The report detailed that § 87(2)(b) complained of wrist pain and asthma but stated that he did not need an asthma pump. The report listed Police Officer Raul Gonzalez of Transit District 33 as the arresting/escorting officer, while Sergeant Patryk Kaczmarczyk of Transit District 33 was listed as the officer who entered the report.

BWC footage from PO Chase and PO Valencia (BR 17, 19) does not ever capture § 87(2)(b) requesting medical attention. PO Chase's BWC footage shows that at 13:38, officers repeatedly ask for § 87(2)(b) name, date of birth, and address but § 87(2)(b) refuses to provide the information. The desk sergeant tells the officers to search him and to put him in a holding cell until they can figure out who he is. At 15:36, PO Chase escorts § 87(2)(b) to a holding cell. PO Chase tells another officer that § 87(2)(b) arresting officer has all of § 87(2)(b) property. PO Chase opens the holding cell door, and they discuss why § 87(2)(b) was stopped before the video

ends. PO Valencia's BWC corroborates that of PO Chase.

Both PO Valencia and PO Chase (BR 23, 25) denied hearing § 87(2)(b) request medical attention while they were present at the stationhouse, and both officers were unaware if an ambulance was ever called for him.

PO Gonzalez (BR 27) stated that his only role in § 87(2)(b) arrest was filling out the arrest paperwork. PO Gonzalez's interactions with § 87(2)(b) consisted of visiting him in the holding cell approximately ten times, each time asking § 87(2)(b) for his name and pedigree information for the arrest paperwork as well as asking if he wanted a phone call. § 87(2)(b) replied, "suck my dick" each time. During these visits, PO Gonzalez did not notice any signs of pain or injury on § 87(2)(b) nor did § 87(2)(b) ever ask for medical attention. PO Gonzalez did not ever hear § 87(2)(b) complain about pain his wrists, asthma or difficulty breathing. PO Gonzalez explained that although he was not present during the incident, Sgt. Kaczmarczyk had completed part of the paperwork and listed him as the arresting officer.

Sgt. Kaczmarczyk (BR 28) stated that he signed off on the medical treatment of prisoner form the next day (June 10, 2023). In addition, his name appeared as the entering officer because he would often check and enter/correct any information on the paperwork such as missing officer names or inaccurate entries. Sgt. Kaczmarczyk did not have any interaction with § 87(2)(b) and denied receiving any request for medical attention from anyone in the holding cells.

§ 87(2)(b) was unable to provide a more specific description of the subject officer, and the investigation was unable to identify additional officers for interview. § 87(2)(g)

§ 87(2)(b) BWC footage does not capture any conversation regarding medical attention. § 87(2)(g)

It is recommended that Allegation V be closed as **Officer Unidentified**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (BR 31).
- PO Dease has been a member of service for sixteen years and this is the first complaint to which he has been a subject.
- PO OConnor has been a member of service for eighteen years and has been a subject in one CCRB complaint and two allegations, both of which were substantiated (BR 32):
 - Case #202204404 involved substantiated allegations of physical force and

discourteous word. The Board recommended charges and the NYPD imposed Command Discipline A. § 87(2)(g)

- PO Martinez has been a member of service for two years and this is the first complaint to which he has been a subject.
- PO Valencia has been a member of service for nineteen years and has been a subject in eleven CCRB complaints and thirty-one allegations, of which three were substantiated (**BR 33**):
 - Case #202103467 involved one substantiated allegation of a misleading official statement. The Board recommended charges and the NYPD imposed no penalty.
 - Case #202301366 involved substantiated allegations of improper use of BWC and discourteous word. The Board recommended Command Discipline B and the NYPD imposed no penalty. § 87(2)(g)
- PO Chase has been a member of service for six years and has been a subject in two CCRB complaints and five allegations, of which one was substantiated (**BR 34**):
 - Case #202208834 involved one substantiated allegation of improper use of BWC. The Board recommended formalized training and the NYPD imposed no penalty. § 87(2)(g)
- Sgt. Alvarez has been a member of service for seventeen years and has been a subject in three CCRB complaints and eleven allegations, of which one was substantiated (**BR 35**):
 - Case #202208834 involved one substantiated allegation of improper use of BWC. The Board recommended formalized training and the NYPD imposed no penalty. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On July 30, 2024, a FOIL request was submitted to the Office of the New York City Comptroller. Results will be attached upon receipt (**BR 36**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 10

Investigator:	Justin Huang	Investigator Huang	07/31/2024
	Signature	Print Title & Name	Date

Squad Leader:	Maura R. Roche	IM Maura R. Roche	08/05/2024
	Signature	Print Title & Name	Date

Reviewer:			
-----------	--	--	--

Signature

Print Title & Name

Date